

Court No. - 39

Case :- WRIT - C No. - 36442 of 2014

Petitioner :- Mohd. Mansoor

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- H.P. Dube

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Sri Mahboob Ahmad, who has accepted notice on behalf of respondents no. 2 & 3, has sent illness slip.

Put up as fresh on 21st July, 2014.

Order Date :- 17.7.2014

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Court No. - 39

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Petitioner :- Mohd. Mansoor

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- H.P. Dube

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Sri Mahboob Ahmad who has accepted notice on behalf of respondents no. 2 & 3 prays for and is allowed ten days time to seek instruction in the matter.

Put up as fresh on 1st August, 2014.

Till 1st August, 2014, no coercive step shall be taken against the petitioner in pursuance of the impugned recovery citation dated 04.07.2014 (annexure-6 to the writ petition).

Order Date :- 21.7.2014

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Court No. - 39

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Petitioner :- Mohd. Mansoor

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- H.P. Dube

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard learned counsel for the parties.

The petitioner has approached this court challenging the citation dated 4.7.2014 issued by respondent no.5 for recovery of a sum of Rs.1,25,141/- as electricity outstanding dues.

When the matter was taken up on 21.7.2014, learned counsel for the petitioner pointed out that the calculation memo prepared by respondent no.3, regarding assessment of outstanding dues, goes to show that it has been calculated at two times of the normal existing tariff, whereas in view of the mandatory provisions of clause 8.2(vii) of the Electricity Supply Code, 2005, the assessment can only be made at one time of the normal existing tariff and thus amount sought to be recovered on account of the mistake, renders recovery illegal.

Sri Mahboob Ahmad, learned counsel for the respondent-corporation, on the said date, sought time to seek instructions in the matter.

Today on the basis of the instructions, which have been passed on and taken on record, learned counsel for the respondents states that there was a calculation mistake, which has been rectified and now the total outstanding dues has been worked out to Rs.45,194/-.

Sri H.P. Dube, learned counsel for the petitioner, does not dispute the correctness of the outstanding dues and made prayer to grant some reasonable time for making payment of the same, inasmuch as the petitioner is a poor class IV employee working as Chowkidar. He further states that the outstanding dues of Rs.45,194/- shall be deposited within a period of two months from today.

Considering the facts and circumstances of the case, the writ petition stands disposed of with the direction that the recovery initiated against the petitioner stands quashed. The outstanding dues of Rs.45,194/- as worked out shall be deposited by the petitioner within a period of two months from today. In case, he fails to deposit the aforesaid amount within the time provided, it shall be open for the respondents to recover the aforesaid amount, in accordance with law.

Order Date :- 1.8.2014

Ashok Kr.